

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT
JUDGMENT

C.R.No.889/2018

Muhammad Ayoub **VS.** Muhammad Farooq etc.

Date of hearing : 28.09.2022
Petitioner by : Mr. Muneeb-ur-Rehman, Advocate
Respondents by : Syed Mujahid Ayub Wasti, Advocate

Ch. Muhammad Iqbal, J:- Through this civil revision, the petitioner has challenged the validity of the judgment & decree dated 22.11.2018 passed by the learned Additional District Judge, Yazman who accepted the appeal of the respondent No.1, set aside the judgment & decree dated 27.11.2017 passed by the learned Civil Judge, Yazman and decreed the suit for declaration filed by the respondent No.1/plaintiff.

2. Brief facts of the case are that the respondent No.1/plaintiff filed a suit for declaration against the petitioner & others / defendants and contended that the parties of the lis are legal heirs of Muhammad Ali, who died on 10.10.2012 and after his death, all the parties of the lis are entitled to inherit from his legacy as per their respective shares. That inheritance mutation No.605 dated 27.12.2014 of Muhammad Ali deceased was incorporated in favour of his legal heirs excluding the name of the respondent/plaintiff on the ground that criminal case was registered against the respondent/plaintiff (son) for committing murder of his father (Muhammad Ali). The petitioner/defendant

filed contesting written statement contending therein that on 10.10.2012 the respondent No.1 / plaintiff committed murder of his father (Muhammad Ali) and after full-fledge trial, the charge against him stood proved and he was awarded death penalty against which he filed an appeal before this Court. During the pendency of the appeal, a compromise was affected between the parties and convict-respondent/plaintiff was acquitted. Thus, the respondent/plaintiff is not entitled to inherit from the legacy of his deceased father. The learned trial Court framed issues, recorded pro and contra evidence of the parties and finally dismissed the suit vide judgment & decree dated 27.11.2017. The respondent No.1 filed an appeal which was allowed by the learned appellate Court vide judgment & decree dated 22.11.2018 and by setting aside the judgment & decree dated 27.11.2017, passed by the learned trial Court, the suit of the respondent No.1 was decreed. Hence, this civil revision.

3. I have heard the arguments of learned counsels for the parties and have gone through the record with their able assistance.

4. Admittedly, against the respondent No.1/plaintiff, a criminal case [FIR No.227/2012] was registered under Section 302 PPC at P.S Head Rajkan for committing murder of his real father namely Muhammad Ali. After trial, the charge of the offence of murder was proved and the respondent No.1/plaintiff was convicted and awarded death sentence. Thereafter, during the pendency of the appeal against conviction, a compromise was effected between the parties and on the basis of the said compromise the convict respondent/plaintiff was acquitted. It is thus established on record that the respondent/plaintiff committed murder of his father. As per the Islamic Shariah as well as the settled law of this country, a patricide shall be excluded from the inheritance of his father whom he killed himself. In this regard, I

seek guidance from the following Hadith of The Last Holy Prophet Hazrat Muhammad (ﷺ) :

"قاتل وارث نہیں ہوتا۔"
 (سنن ابن ماجہ جلد دوم کتاب الدیات حدیث نمبر 2645، صفحہ نمبر 435)
 "قاتل کو میراث نہ ملے گی۔"
 (سنن ابن ماجہ جلد دوم کتاب الدیات حدیث نمبر 2735، صفحہ نمبر 484)

Under Section 317 of the Pakistan Penal Code, 1860, a person who commits murder is debarred from succession of said deceased. For ready reference, aforesaid section is reproduced as under:

“317. Person committing *qatl* debarred from succession.
 Where a person committing *qatl-i-'amd* or *qatl shibhi-e-'amd* is an heir or a beneficiary under a will, he shall be debarred from succeeding to the estate of the victim as an heir or a beneficiary.”

A larger Bench consisting of Hon’ble Five Members of the August Supreme Court of Pakistan, in an alike matter cited as **Aminullah Vs. The State (PLD 1982 SC 429)**, has held as under:

“25.... It is to be borne in mine that patricide in itself is a shameful and under the Islamic Law in the event of it being established that the appellants were guilty of killing their father would deprive them of the right to inherit from their father, and thus the very bone of contention and the object of the murder would be lost.”

Another reliance is placed on a case cited a **Fazle Ghafoor Vs. Chairman, Tribunal land Disputes, Dir, Swat at Chitra at Mardan and 6 others (1993 SCMR 1073)**, wherein the Hon'ble Supreme Court of Pakistan has held as under:

“In this situation again it is Constitutional compulsion in Pakistan and a command for all the courts, to fill this void by the Islamic common law dispensation. It is agreed by the learned counsel for the appellant that under the Islamic Law of inheritance an heir loses the right to inherit, if found guilty of having murdered the person who is the source of inheritance. See the case of Aminullah v. The State (PLD 1982 SC 429 at page 443).”

Reliance is also placed on cases cited as **Mst. Beguman and 2 others Vs. Saroo and another [PLD 1964 (W.P.) Lahore 451]**,

Syed Muhammad Nawaz Shah and others Vs. Amir Hussain Shah and others (1989 CLC 1712), Noor Zaman alias Maney Vs. The State (2008 YLR 2352) and Muhammad Shafi Tarar Vs. Fehmida Yasmin and others (2018 CLC 860).

5. For what has been discussed, the findings of learned appellate Court, being against the principles of Islam, law as well as record, are hereby reversed and the issues No.1, 2 are decided against the respondent No.1/plaintiff whereas the issues No.3 to 5 are hereby decided in favour the petitioner/defendant.

6. From the above, it is established that the learned trial court rightly dismissed the suit of respondent No.1, whereas learned appellate Court by committing misreading and non-reading of evidence as well as misapplication of law, passed the impugned judgment & decree which suffers from patent illegality and irregularity, as such, the same is liable to be set-aside. Reliance is placed on the case of Nazim-ud-Din and Others v. Sheikh Zia-Ul-Qamar and Others (2016 SCMR 24).

7. Resultantly, this civil revision is **allowed**, the judgment & decree dated 22.11.2018 passed by the learned appellate Court is hereby set aside, the judgment & decree dated 27.11.2017, passed by the learned trial Court is upheld and the suit filed by the respondent No.1/plaintiff is dismissed. No order as to costs.

(Ch. Muhammad Iqbal)
Judge

Approved for reporting.

Judge